



POLICE DEPARTMENT

March 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303881 (Incident Date: September 16, 2022) regarding Police Officer Rashawn Holman, Tax No. 950594 (DADS No. 2023-29384)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202303881, pertaining to Police Officer Rashawn Holman. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Holman would be detrimental to the Police Department's disciplinary process.

In this matter, Officer Holman pushed the non-compliant complainant several times during a transit ejection and failed to provide the complainant with his shield number when requested. The Police Commissioner agrees with CCRB's finding that the officer's actions were improper. However, given Officer Holman's lack of prior formal disciplinary history and lack of prior substantiated CCRB complaints, and in the interest of progressive discipline, the allegations against Officer Holman are best addressed with the imposition of a command discipline.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline for the substantiated misconduct.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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ARVA RICE
INTERIM CHAIR

March 13, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202303881 (Incident Date: September 16, 2022) regarding Police Officer Rashawn Holman, Tax No. 950594 (DADS No. 2023-29384)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated March 11, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you concluded that PO Holman’s actions were improper. Nevertheless, you determined that you would direct the issuance of a Schedule “A” Command Discipline to PO Holman in connection with the substantiated allegations, citing PO Holman’s lack of a prior formal disciplinary history, his lack of prior substantiated CCRB complaint, and in the interest of progressive discipline.

Had this disciplinary process continued and PO Holman were to have accepted responsibility for his behavior in this matter, the CCRB would likely have reached a disposition similar to the one proposed by the Police Commissioner.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



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March 13, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

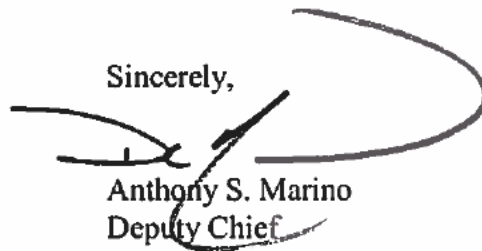
Re: CCRB Case No. 202303881 (Incident Date: September 16, 2022) regarding Police Officer Rashawn Holman, Tax No. 950594 (DADS No. 2023-29384)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated March 13, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Rashawn Holman, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Holman for the reasons expressed in my March 11, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Holman be issued a Schedule "A" Command Discipline for the substantiated misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office